

TRP(C)/119/2020 on 24 February, 2021

Author: Biswanath Rath

Bench: Biswanath Rath

TRP(C) No.119 of 2020

05. 24.02.2021

Heard learned counsel for the petitioner.
None appears for the opposite party at the
time of call.

This Transfer Petition has been filed by the wife-Petitioner seeking transfer of the C.P. No.44 of 2020 from the court of learned Judge, Family Court, Sambalpur to the court of learned Judge, Family Court, Cuttack.

Learned counsel for petitioner referring to the grounds taken in this petition submitted that few days after her marriage, dissension started in the in-laws house, leading to physical and mental torture. Even she was not allowed to have contact with her four years child. Her husband instituted a proceeding u/s.13(1)((ia)(ib) of Hindu Marriage Act, 1955 r/w. Section 7(1) of the Family Courts Act, 1984 for decree of divorce, being C.P. No.44/2020. It is stated that after being deserted from the in-laws house, she is staying with her father's house at village Sankhapur in the district of Cuttack since 2014. She is an unemployed lady and fully dependent on his father's income. Therefore, it is difficult on her part to bear the travelling expenses and other related expenditure for attending the proceeding pending in the court of the learned Judge, Family Court, Sambalpur.

Considering the submission made and looking to the financial status of the wife-petitioner and since wife does not feel safe to attend the proceeding at

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Sambalpur, which is almost 280 kms away from Cuttack, this Court observes, there would be no difficulty, if the case of the husband gets transferred to the Family Court, Cuttack. Accordingly, this Court directs for transfer of the C.P. No.44 of 2020 from the court of learned Judge, Family Court, Sambalpur to the

court of learned Judge, Family Court, Cuttack. The permanent address of the wife is reflected on the summon issued by the learned Judge, Family Court, Sambalpur, showing to be of village-Sankhapur, PO-Kuhunda, PS-Mahanga, Dist.-Cuttack, Odisha, PIN-754204.

Petitioner is directed to serve a copy of this order on the learned Judge, Family Court, Sambalpur within a period of ten days hence and on receiving this order, learned Judge shall transmit the case records involving C.P. No.44 of 2020 within a period of two weeks thereafter, to the Court of learned Judge, Family Court, Cuttack for its doing the needful. This Court also directs learned Judge, Family Court, Cuttack to dispose of the C.P. No.44 of 2020 as expeditiously as possible preferably within a period of six months from the date of transmission of the case records. Upon receipt of the record, if the learned Judge, Family Court, Cuttack finds, the husband-Opposite Party fails to appear voluntarily, notice may be issued to the husband-Opposite Party for appearing in the proceeding.

This Court here records the undertaking of the wife-Petitioner through her counsel that she will co-

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operate the learned Judge, Family Court, Cuttack in timely disposal of the Civil Proceeding and will not create any problem for the husband-Opposite Party in appearing in the proceeding at Cuttack. Since this order is passed only hearing the learned counsel for the wife-Petitioner, but however, taking into consideration the reasons assigned hereinabove, this Court permits the husband-Opposite Party, in the event of any dire necessity, he may apply for modification of this order.

This order shall be communicated to the husband-Opposite Party at the cost of the wife-Petitioner, for which requisites by way of Speed Post with A.D. shall be filed within a period of three working days hence.

With the above observation and direction the Transfer Petition stands disposed of.

Issue urgent certified copy as per rules.

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Biswanath Rath, J.